

RSACConferenceTM2024

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THE ART OF
POSSIBLE

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Privacy Past and Present: A Father-Daughter Dive into Data Privacy Evolution

#RSAC

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Agenda

1. Introductions
2. Where Privacy Began in the United States
3. The Evolution of Privacy Norms
4. Shifting Attitudes Towards Privacy
5. The Present Landscape
6. Looking Ahead
7. Future-Proofing Privacy Practices
8. Q&A and Closing Remarks

Introductions

Ronald Sarian



Caitlin Sarian



What Does Privacy Mean Today?

- “The Trust we put into a service or company to protect our personal information”
- “Being able to have the right to determine how data I give companies will be used”
- “Freedom to look without intrusion or data from me being taken without acknowledgement or consent”
- “Making sure the people I exchange non-public information with protect it”
- “Trust, Transparency and Choices”

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**Where It All Began in the
United States . . .**

The Right to Privacy, 1890

Warren and Brandeis



INSTANT PHOTOGRAPHY AND PAPARAZZI

Protection of society must come mainly from the recognition of the individual:

- The right to be let alone
- Rights against the world
- Inviolate personality
- A man is that which is exclusively his
- Privacy itself is the right to be protected

Exceptions

Generally, should not be forced to tell people what you're thinking, how you are feeling, what you are doing in private . . . unless:

- Voluntarily disclose it
- Compelled to disclose in privileged setting, e.g., court of law
- Public or general interest, public figure

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The Evolution of Privacy Norms

So What Happened?

Early Court Interpretations



William James Sidis

Born 1898

Child Prodigy, IQ 250-300

Pushed by credentialed parents

Read NYT end to end at 2

8 languages at 8

Accepted to Harvard at 9 but not allowed in until 11

Caught and corrected mistakes in textbooks

Published at least eight books

Household name, but . . .

Mocked and teased

Just wanted to be invisible

Dropped Out and Withdrew

- Happy with anonymity
- Moved from city to city once recognized
- Used pseudonyms
- Menial jobs: turner, locksmith, carpenter

Befriended by a Reporter of Boston Sunday Advertiser and New Yorker (unbeknownst) – “Where Are They Now”

- “Ironical, leading a life of wondering irresponsibility after a childhood of scrupulous regimentation”
- Humiliating
- Not really true but not really false

Lawsuits Inconsistent

1) Sues under NY Civil Rights Statute, Section 51 for publishing a photograph for advertising purposes w/o permission – loses.

“At some point the public interest in obtaining information becomes dominant over the individual’s right to privacy.”

2) Sues again for libel and false information making him look “loathsome and filthy.”

Settled out of court for undisclosed but small amount. No precedent set.

No Clear Guidance from a Civil Standpoint

Although Defamation (Libel and Slander) remained a viable civil remedy, that's quite different from the right to privacy.

Truth is a defense to defamation, but not to a violation.

Substantial Guidance from Criminal Standpoint – *The Fourth Amendment*

- The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.
- *What is a “search”?*

If a “search” – warrant needed (initially applied to governmental entities only).

Focus on whether a particular form of surveillance constitutes a “search.”



**Roy
Olmstead-
Bootlegger
1920s
Prohibition**



Wiretapped by
FBI – and caught

No “search”
because
wiretapping was
not a trespass



Trespass Doctrine – A Way Around Privacy

No Trespass, No Search, No Warrant Required

- **Definition:**

- Legal principle prohibiting unauthorized *entry onto someone's property*
- Emphasizes *physical space and tangible property rights*

[We'll see – Evolution in the Digital Age]

Informants, Bugs, and Wires

Allow actual trespass onto property. Misplaced trust no defense.
Assume the risk that anyone you talk to can be an informant.



On Lee vs. United States (1952) Lopez vs. United States (1963) Hoffa vs. United States (1966)

- Not a violation of privacy – *not a search*
- Broadly allowed, and continues today
- Should generally assume that anyone can be working for government

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Shifting Attitudes Towards Privacy

The Reasonable Expectation of Privacy Test

Charles Katz, Sports Bookmaker

1967



Calls Bugged

- Microphone placed on outer glass of public telephone booth.
- Reasonable expectation of privacy with closed doors.
 - Subjective – Individual expectation
 - Objective – Societal expectation

But Many Cases Went on to Distinguish *Katz*

United States vs. White (1971)

- Although an individual may have an expectation of privacy, society would not when one is committing a crime – no search.
- Reasoning allows an end-run around expectation of privacy on a case-by-case basis.

Third Party Doctrine – You voluntarily provided it!

United States
vs. Miller
(1976)

Smith vs.
Maryland
(1979)

Things Within Public View

- Items visible from the air:
 - Pollutants within an enclosed business curtilage. *U.S. vs. Dow Chemical (1985)*
 - Marijuana being seen through open roof. *Florida vs. Riley (1989)*



Other Permissible Forms of “Surveillance”

- Canine sniffs
- Waste left in the public (coffee cups, cigarette butts)
- Smart meter readings (third party doctrine)
- Trash cans

But With the Advent of Technology, the Pendulum Swings Back . . .



United States vs. Jones (2012)

- GPS tracking devices.
Reasonable expectation of privacy of your travelling in your car
- A search, and warrant needed



Riley vs. California (2014)

- Cellular Phone Search
 - Police cannot search the content of cell phones without a warrant



Carpenter vs. United States (2016)

- Cell Site Location Data is a search
 - Data too extensive



1960s

**Privacy Benefits and
Responsibilities for
Individuals Begin to Take
Shape**



Prosser Torts -1960 Restatement of Torts Common Law

- Intrusion upon seclusion
- Public disclosure of private facts
- False light
- Misappropriation of name or likeness for commercial purposes

Existing Common Law Privacy Related Torts Continue On

- Breach of Confidentiality
- Defamation (Libel and Slander)
- Infliction of Emotional Distress

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The Present Landscape

The Digital Revolution: How Advanced Technologies Redefined Privacy

- Technology advanced, the ways in which personal information was collected, stored, analyzed, and shared underwent a radical transformation
- This digital proliferation led to an exponential increase in the volume and variety of data being generated
- Personal information was no longer confined to paper records but was now digital, easily replicated, and capable of being transmitted across the globe in seconds
- Concept of “trespass” considerably broadened with reasonable expectation of privacy

Federal and State Legislation Created to Extend Privacy Rights and Liabilities to Individuals

- California Penal Code, Section 631, *et seq.*, (1967)
 - Wiretapping
 - Revenge Porn
- FCRA (1970)
- HIPAA (Privacy Rule, Security Rule) (1996)
- GLBA (1999)
- FACTA (2003)
- HITECH ACT (2009)
- California Data Broker Laws (2023)

The Government Gives **– *And It Takes Away***

U.S. Government Intelligence Efforts

- FISA (1978)
- CALEA (1979)
- EO 12333 (1980)
- US PATRIOT Act (2001)
- FISA 702 (2006)
- CLOUD Act (2018)

Pushback from Europe

Snowdon Revelations (2013) (EU and US)

Schrems I (2015) (invalidation of “safe harbor”)

EU-US Privacy Shield (2016)

Schrems II (2019) (invalidation of EU-US Privacy Shield)

EO 14086

EU-US Data Privacy Framework

And Pushback From the Americans

- ECPA (1980)
- CCPA (2020)
- CPRA (2023)
- Many States' Privacy Laws – 14 and counting

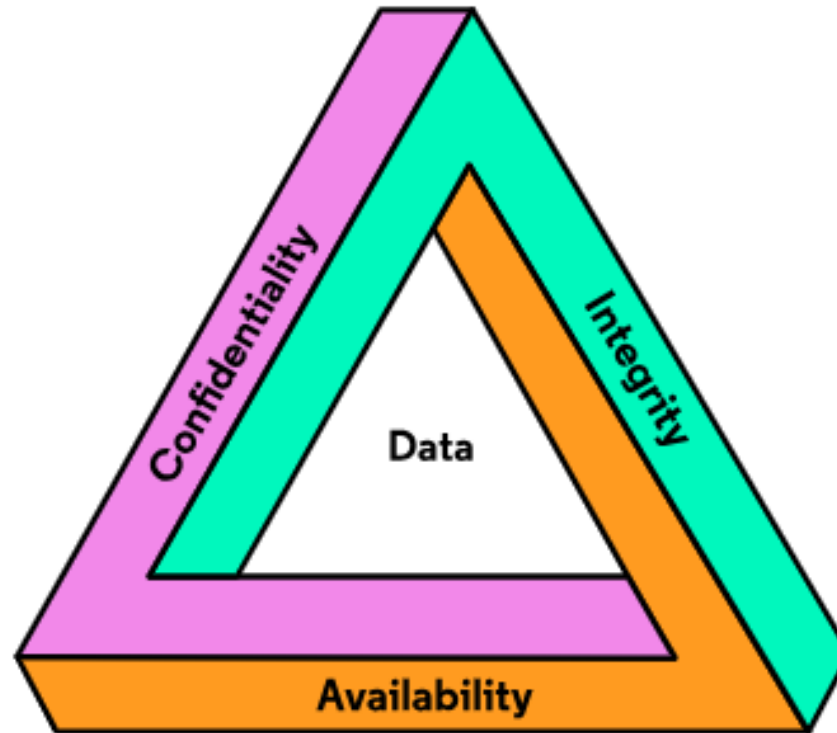
So Let's Focus on the Most Important Privacy Laws Today

- EU Cookie Directive
- GDPR 5/25/2018
- CCPA 1/1/2020
- CPRA 1/1/2023

All based upon the right to know what type of information is being collected from you online and the right to exercise some degree of control as to how it is being used and whether it is being sold.

Privacy Policy and Cookie Banners

The Start of Cybersecurity and the CIA Triad- 1987



Widespread Adoption of the Internet in the 1990's

- Cyber threats evolved with the growth of:
 - E-commerce
 - Social media
 - Online banking
- Leading to an increase in data breaches, hacking incidents, and identity theft.

All 50 states have enacted own data
breach laws

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Looking Ahead

Privacy and Social Media

- **Evolving Data Collection Practices**
- **Widespread Use vs. Privacy Concerns**
- **Privacy Issues and Social Media Platforms**
- **Shadow Profiles and the Illusion of Privacy Choice**

Federal Privacy Law In the Works

- Will homogenize and unify divergent and disparate state laws.
- Preemption of anything inconsistent
- Broad Private Right of Action

AI: The New Privacy Frontier

How Does AI Threaten our Privacy?

AI Regulation as part of Comprehensive Consumer Privacy Bills

State	Name	Date introduced	Description
Hawaii	Hawaii Consumer Data Protection Act (SB974 or SB1110/HB1497)	January 20, 2023	This bill would allow users to opt-out of profiling that uses their personal data, and would require data protection assessments for processing activities posing a “heightened risk to consumers.”
Illinois	Illinois Data Privacy and Protection Act (HB3385)	February 17, 2023	This bill would regulate collection and processing of personal information through algorithms.
Maine	Maine Data Privacy and Protection Act (HB1270)	May 19, 2023	This bill prohibits discrimination through data processing, regulates targeted advertising, and requires an impact assessment for “high risk” algorithms.
Massachusetts	Massachusetts Data Privacy Protection Act (MDPPA), Massachusetts Information Privacy Protection Act (MIPSA), and the Internet Bill of Rights (H.1555)	January 18- 20, 2023	Three competing consumer privacy bills all would consumers the right to know about or opt-out of automated profiling, and require impact assessments for controllers engaged in automated decision making.
Minnesota	Minnesota Consumer Data Privacy Act (HF2309/SF2915)	March 15, 2023	This bill would allow consumers to opt-out of profiling and would require data protection assessments.
New Hampshire	Consumer Data Privacy Act (SB255)	January 19, 2023	This bill would allow consumers to opt-out of profiling and would require data protection assessments.
New York	New York Privacy Act (SB365 or AB3593)	January 4 and February 3, 2023	These alternative versions of a New York comprehensive privacy law give consumers more control over automated decisions used for profiling and require impact assessments.
Pennsylvania	Consumer Data Protection Act (HB708)	March 27, 2023	This bill would allow consumers to opt-out of profiling and would require data protection assessments.
Rhode Island	Rhode Island Data Transparency and Privacy Protection Act (HB6236)	March 30, 2023	This bill would allow consumers to opt-out of profiling and would require data protection assessments.
Washington	People’s Privacy Act (SB5643/HB1616)	January 31, 2023	This bill would restrict the use of AI profiling and facial recognition in public accommodations.

AI Privacy Laws Healthcare

California	AB1502	February 17, 2023	This bill would prevent healthcare providers using automated decision systems from discriminating based on race, color, national origin, sex, age, or disability.
Illinois	HB1002	January 11, 2023	This bill would require that algorithms used to diagnose patients are certified and shown to achieve accurate results. It also would give patients the right to know that an algorithm diagnosed them, and opt-out of its use.
Illinois	HB3338	February 17, 2023	This bill would prevent hospitals from adopting policies that prevent nurses from substituting their judgment for the automated recommendations of AI systems.
Maine	SB656a	April 12, 2023	This bill would prevent hospitals from adopting policies that prevent nurses from substituting their judgment for the automated recommendations of AI systems.
Massachusetts	HB1974	February 16, 2023	This bill would require that AI used for mental health patients be pre-approved and monitored, and that patients would be informed about and must consent to AI use.
Rhode Island	HB6285	April 19, 2023	This bill would require that AI used for mental health services be pre-approved, and that patients are informed about AI use and can opt for mental health treatment from a professional instead.
Texas	HB4695	March 10, 2023	This bill would only allow mental health professionals to administer mental health care through AI, and requires that the mental health professional be available to monitor progress or communicate with the patient.

Bespoke AI Regulations

State	Name	Date introduced	Description
California	A302	January 26, 2023	This bill would require the Department of Technology to take inventory of all high-risk automated decision systems used by state agencies.
California	S398	February 9, 2023	This bill would require the Department of Technology to develop a research plan to investigate potential new uses of technology for the state, including “virtual assistants powered by AI.”
California	California AI-ware Act (S313)	February 6, 2023	This bill would require any state agency using generative AI to communicate to disclose to that person that the communication is through generative AI.
Massachusetts	H64/S33	February 16, 2023	This bill would establish a State Commission on Automated Decision Making to investigate Massachusetts’s AI use.
Missouri	H311	January 4, 2023	This bill would establish the Missouri State Technology Task Force which would investigate AI used by the state, among other technologies.
New Jersey	SB3876	May 22, 2023	This bill would appoint an Artificial Intelligence Officer to oversee state agencies’ uses of AI.
New York	A5309	March 7, 2023	This bill would require state units purchased products that use automated decision making to adhere to responsible AI standards.
Rhode Island	S117	February 1, 2023	This bill would establish a commission to study and regulate the use of AI by the state government.
Rhode Island	H6423	May 19, 2023	This bill requests that the government review the extent of automated decision making used by the state of Rhode Island and its impacts.
Washington	S5356	January 12, 2023	This bill would require government agencies to follow responsible methods for procuring AI, assess the impacts of automated decision making systems they use, and conduct ongoing monitoring to uncover bias or discrimination.

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Future Proofing Privacy Strategies

Essential Strategies for Compliance and Creating a Privacy-Centric Environment

1. Assessing and Reducing Current Risk
2. Automating Core Processes
3. Creating Scalable Programs & Staying Informed

Assessing and Reducing Current Risk

1. Lean Data Approach

- Prioritize data minimization
- Retain only what's necessary

2. Adopting Stringent Laws as Baseline

- GDPR, CCPA as benchmarks
- Ensures comprehensive compliance

3. Risk Identification and Mitigation

- Regular Data Privacy Impact Assessments
- Implementing Risk Reduction Strategies

4. Assessment and Mapping

- Automated Data Discovery and Classification
- Privacy Impact Assessments

Automating Core Processes

1. Automated Compliance Checks

- Real-time monitoring of data processing
- Automated alerts for non-compliance

2. Data Subject Request Automation

- Streamlined processing of access, deletion requests
- Reduces manual labor and error

3. Automated Training and Awareness

- Regular, updated training modules
- Engages employees in privacy culture

4. Monitoring and Reporting

- Real-time Compliance Dashboards
- Automated Incident Reporting

5. Vendor and Third-party Management

- Automated Risk Assessments
- Continuous Monitoring and Evaluation

Creating Scalable Programs & Staying Informed

1. Scalable Privacy Frameworks

- Build flexible, adaptable privacy programs
- Ready for organizational and regulatory changes

2. Continuous Learning and Expert Collaboration

- Engage with privacy communities
- Collaborate with external experts

3. Staying Ahead of the Curve

- Regularly update knowledge base
- Anticipate changes in privacy landscape

4. Continuous Improvement

- Feedback Loops
- Regular Program Reviews

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Closing Remarks

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Q&A

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